

IN THE UNITED STATES DISTRICT COURT
FOR THE EASTERN DISTRICT OF NEW YORK

THE ESTATE OF SHELDON A. SAMUEL, by the
Administrator of his Estate, SHELDON SAMUEL, Jr.

Plaintiff(s),

v.

New York City Police Department – The City of
New York, P.O. Jonathan Caldron, P.O. John
Does, 1-3, Individually and in their Official Capacities,
and Police Sergeants - “Merrick Vance,” and Sergeants
“John Doe,” 1-3, Individually and in their Official
Capacities; and each of the above joint and severally.
The names JOHN DOE” being fictitious as the true
names are not presently known.

Defendant(s).

Case No.

VERIFIED COMPLAINT

**JURY TRIAL
DEMANDED**

Plaintiff, Estate of Sheldon A. Samuel, by the Administrator of his Estate SHELDON SAMUEL Jr., by and through his attorneys, the Law Firm of Ray & Associates as his Complaint, respectfully alleges, upon information and belief:

PRELIMINARY STATEMENT

Plaintiff, Estate of Sheldon A. Samuel, by the Administrator of his Estate, SHELDON SAMUEL Jr. (hereinafter, “Plaintiff”), a New York resident, brings this action for compensatory damages, punitive damages and attorney’s fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of his civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States of America.

JURISDICTION AND VENUE

1. This action arises under the Fourth and Fourteenth Amendments to the United States Constitution, and 42 U.S.C. sections 1983 and 1988.
2. This Court has jurisdiction in this matter pursuant to 28 U.S.C. Sections 1331, 1343; and 1367. This is a civil action under seeking damages against Defendants for committing acts, under color of law, with the intent and for the purpose of depriving Plaintiff of rights secured under the Constitution and laws of the United States.
3. Venue is properly laid in the Eastern District of New York in Kings County, NY, under U.S.C. § 1391(b) in that this is the District in which the claim arose.
4. No other forum would be more convenient for the parties and witnesses to litigation this action.
5. New York law applies to all claims set forth in this Complaint as Defendants are New York City Police Department and New York City Police Officers. Negligent acts giving rise to the claim occurred in this District.

JURY DEMAND

6. Plaintiff respectfully demands a trial by jury of all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

PARTIES

1. Decedent, Sheldon A. Samuel was a citizen of the State of New York.
2. The Administrator of the Estate of Sheldon A. Samuel, SHELDON SAMUEL Jr., is citizen and resident of the State of New York.
3. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
4. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to

perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, THE CITY OF NEW YORK.

5. At all times hereinafter mentioned the individually named defendant police officers Jonathan Caldron and police officers John Does, 1-3 were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.
6. At all times hereinafter mentioned the individually named defendant Sergeant Merrick Vance and Sergeants "John Doe, " 1-3, Sergeants of the New York City Police Department were duly sworn Sergeants of said department and were acting under the supervision of said department and according to their official duties.
7. At all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or CITY OF NEW YORK.
8. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant, THE CITY OF NEW YORK.
9. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant, THE CITY OF NEW YORK.

NOTICE OF CLAIM

10. That notice of suit against a public entity, pursuant to NYCPLR section 50(e), has been given to defendant in a timely fashion.

11. That prior to the institution of this action, on 25 March 2016, within ninety (90) days after plaintiff's action arose, plaintiff caused to be served upon the defendant, a verified notice of claim and intention to sue, sworn to by claimant, containing a statement of the name and post office address of the claimant and of his attorney, the nature of the claim, the time when, and place where, and the manner in which the claim arose, and the items of damage or injuries claimed to have been sustained.
12. That on 8 August 2016, the defendant conducted an examination of the claims pursuant to NY Gen. Mun. §50-h. More than thirty days have elapsed since the examination and adjustment or payment the claim has been neglected or refused.
13. This complaint for wrongful death is timely as NY CLS Gen Mun § 50-i, (c) the action or special proceeding shall be commenced within one year and ninety days after the happening of the event upon which the claim is based; except that wrongful death actions shall be commenced within two years after the happening of the death. Sheldon A. Samuel death occurred on 6 March 2016. Letters of Administration were issued on 15 September 2017. This complaint is being filed on 19 September 2017.

FACTS

14. On the southwest corner of Sheffield and Glenmore Avenues, during the evening of 21 February 2016, at approximately 23:00 hours police officers from PSA and/or 75th precincts in Brooklyn, NY, broke the driver side window of vehicle, removed the driver from his vehicle by throwing him violently on the ground. Subsequent to throwing the driver violently on the ground, one or more police officers began assaulting the driver to the extent numerous blunt injuries that resulted in abrasion, contusions and hemorrhaging resulted from the assault. After the assault, police arrested and charged the driver with resisting arrest, police indicated that driver smelled of alcohol and charged him with

numerous driving while under the influence charges. Mr. Samuel, the driver of the vehicle, was in the midst of a stroke when police officers broke his window, threw him violently on the ground, and began assaulting him. During the delay in calling an ambulance, Mr. Samuel's overall medical condition and hemorrhaging from the stroke was aggravated during the assault. Both, blood alcohol test at the hospital and the autopsy report of Mr. Samuel were negative for alcohol.

NATURE OF THE ACTION

15. This personal injury and wrongful death action is brought by the Estate of Sheldon A. Samuel by the Administrator of his Estate, SHELDON SAMUEL Jr.

CLAIM FOR RELIEF

Count - I

42 U.S.C. § 1983 UNREASONABLE
AND EXCESSIVE FORCE

16. Paragraphs 1- 19 are incorporated by reference as though fully set forth.
17. By their conduct and under color of state law, defendant police officers deprived Mr. Samuel of his constitutional right to be free from excessive and unreasonable force.
18. Defendant police officers must follow federal regulations in order to prevent unnecessary harm.
19. The Estate of Sheldon A. Samuel, by the Administrator, claims damages for injuries set forth above.

CLAIM FOR RELIEF

Count - II

42 U.S.C. § 1983 FALSE ARREST
AND IMPRISONMENT

20. Paragraphs 1- 23 are incorporated by reference as though fully set forth.

21. By their conduct and under color of state law, defendant police officers deprived Mr. Samuel of his constitutional right to be free from excessive and unreasonable force.
22. Defendants under color of state law, conspired with one another to deprive Mr. Samuel of his constitutional rights, including the rights to: be free from unreasonable searches and seizures; to be free from false arrest, false imprisonment.
23. In furtherance of the conspiracy and in order to cover up the acts of brutality defendants' engaged in the following:
 - a. Falsely arresting and imprisoning Mr. Samuel,
 - b. Fabricating and contriving criminal charges lodged against Mr. Samuel,
 - c. Although police officers were aware of the brutality, and were required to report it immediately, deliberately suppressing the truth; and,
 - d. Submitting false police reports, statements and testimony to support and corroborate the fabricated charges lodged against Mr. Samuel to insulate police officers from administrative and criminal sanctions.
24. As a result of the aforesaid conduct by defendants, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined without probable cause, privilege or consent.
25. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.
26. As a result of the foregoing, Mr. Samuel, was caused to sustain physical and emotional injuries while defendant(s) delayed their duty facilitating medical treatment.
27. The Estate of Sheldon A. Samuel, by the Administrator, claims damages for injuries set forth above.

CLAIM FOR RELIEF

Count - III

42 U.S.C. § 1983 – DELAY AND DENIAL OF
MEDICAL TREATMENT AND FAILURE
TO PROTECT WHILE IN CUSTODY

28. Paragraphs 1- 26 are incorporated by reference as though fully set forth.
29. By their conduct and under color of state law, defendant police officers acted with malicious or at least deliberate indifference in choosing not to protect Mr. Samuel from violence while in police custody and failing not to immediately secure the medical attention required for his serious injuries, in a manner that deprived him of his constitutional rights and perpetuated and exacerbated his physical and mental pain and suffering.
30. By their conduct and under color of state law, defendant police officers created, or substantially contributed to placing Mr. Samuel in a more vulnerable medical state than then he would otherwise have been.
31. The Estate of Sheldon A. Samuel, by the Administrator, claims damages for injuries set forth above.
32. Defendants did not follow the required safety rules for a medically incapacitated person that would have prevented either causing or aggravating injuries that caused the death of Mr. Samuel.
33. Defendants under color of state law, conspired with one another to deprive, delay and deny Mr. Samuel of medical attention.

CLAIM FOR RELIEF

Count - IV

42 U.S.C. § 1983

FAILURE TO INTERCEDE

34. Paragraphs 1- 31 are incorporated by reference as though fully set forth.
35. By their conduct and under color of state law, it is believed that defendants, each had opportunities to intercede on behalf of Mr. Samuel to prevent the excessive force and unreasonable seizure; but, due to their intentional conduct or deliberate indifference declined or refused to do so. As a direct and proximate result, Mr. Samuel suffered injuries that resulted in his death or aggravated his condition to expedite his death.
36. The Estate of Sheldon A. Samuel, by the Administrator, claims damages for injuries set forth above.

CLAIM FOR RELIEF

Count - V

42 U.S.C. § 1983

SUPERVISORY LIABILITY

37. Paragraphs 1- 34 are incorporated by reference as though fully set forth.
38. Defendant Sergeants were at the relevant times, supervisory personnel at PSA2 and 75th precincts or NYPD, with oversight responsibility for line police officers. They were responsible for training, instruction, supervision and discipline of police officers responsible for brutalizing a medically incompetent civilian.
39. Based on information and belief, it is believed that these defendants knew or had reason to know about past complaints, aberrant behavior; and, disciplinary infractions, or, in the exercise of due diligence, would have perceived that these officers had conduct and disciplinary problems that posed a pervasive and unreasonable risk of harm to Mr. Samuel.

40. These defendants knew, or in the exercise of due diligence would have known that the conduct of certain police officers under their supervision, the conduct against Mr. Samuel was likely to occur.

41. It is believed that these defendants either chose or failed to take preventative and remedial measures to guard against the brutality and cover up committed by police officers. Had appropriate action was taken, Mr. Samuel would have not been injured, nor would his existing medical condition have been aggravated.

CLAIM FOR RELIEF
Count - VI
42 U.S.C. § 1983
FOR MUNICIPAL LIABILITY

42. Paragraphs 1- 39 are incorporated by reference as though fully set forth.

43. New York City Police Department referred to herein as "NYPD."

44. Defendants arrested and incarcerated Mr. Samuel, in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize plaintiff's liberty, well-being, safety, and violate his constitutional rights.

45. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

46. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the NYPD, all under the supervision of ranking officers of said department.

47. Those customs, policies, patterns, and practices include, but are not limited to:

- i. requiring officers to make a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
- ii. requiring precincts to record a predetermined number of arrests and/or issue a predetermined number of summonses within a predetermined time frame;
- iii. failing to take any measures to correct unconstitutional behavior when brought to the attention of supervisors and/or policy makers;
- iv. failing to properly train police officers in the requirements of the United States Constitution;
- v. utilizing excessive force against arrestees and detainees.

48. The aforementioned customs, policies, usages, practices, procedures and rules of the CITY OF NEW YORK directly cause, *inter alia*, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the officer's arrest statistics,
- ii. arresting individuals regardless of probable cause in order to inflate precinct-wide statistics,
- iii. falsifying evidence and testimony to support those arrests,
- iv. physical abuse against arrestees and detainees in the custody of the NYPD,

49. The foregoing customs, policies, usages, practices, procedures and rules of the NYPD constitute a deliberate indifference to the safety, well-being and constitutional rights of Sheldon Samuel.

50. The foregoing customs, policies, usages, practices, procedures and rules of the NYPD were the direct and proximate cause of the constitutional violations suffered by plaintiff as alleged herein.

51. The foregoing customs, policies, usages, practices, procedures and rules of the NYPD were the moving force behind the constitutional violations suffered by plaintiff as alleged herein.

52. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the NYPD, plaintiff was incarcerated unlawfully.

53. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of plaintiff.
54. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of plaintiff's constitutional rights.
55. All of the foregoing acts by defendants deprived plaintiff of federally protected constitutional rights, particularly his Fourth and Fourteenth Amendment rights to be free from unreasonable search and seizure.

CLAIM FOR RELIEF
Count - VII
ASSAULT & BATTERY

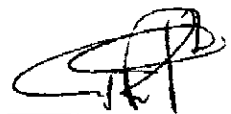
56. Paragraphs 1- 53 are incorporated by reference as though fully set forth.
57. At the aforesaid place and time, the individually named defendants did cause plaintiff, Mr. Samuel, to be unlawfully assaulted and battered, without cause or provocation.
58. The aforesaid assault and battery were caused by the individually named defendants while acting within the scope of their employment with the NYPD.
59. As a result of the aforesaid assault and battery, Mr. Samuel, was injured, both physically and mentally, and the then existing medical condition was aggravated, contributing to Mr. Samuel's death.
60. It was part of the conspiracy that police officers did, among other acts, physically assault Mr. Samuel while undergoing a stroke that resulted in his paralysis and while he was in police custody.
61. Absence of Defendants' negligence, Mr. Samuel's death would probably not have occurred.

PRAYER

WHEREFORE, plaintiff, the estate of Sheldon A. Samuel by the Administrator of his Estate, Sheldon Samuel jr. prays for:

- i. an order awarding compensatory damages in an amount to be determined at trial,
- ii. an order awarding punitive damages in an amount to be determined at trial,
- iii. reasonable attorneys' fees and costs under 42 U.S.C. 1988; and directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

DATED: 20 November 2017



James R. Ray III, Esq (JR3040)
Law Firm of Ray & Associates
19 Fulton St., Suite 300
"South Street Seaport"
New York, NY 10038
917-522-8860

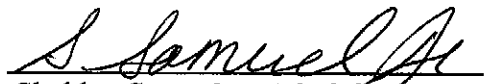
VERIFICATION

I, Sheldon Samuel, of full age certified as follows:

1. I am the Administrator of the Estate of Sheldon A. Samuel.
2. I have read the contents of the Verified Complaint and verify the statements contained therein are true to the best of my knowledge and personal information.
3. I certify that the foregoing statements made by me are true.
4. I certify that the foregoing matter in controversy is not the subject of any other court action or arbitration proceeding now pending or contemplated and no other parties should be joined in this action.

Dated:

20th NOV 2017


Sheldon Samuel JR, Administrator
of the Estate of Sheldon A. Samuel

Sworn to before me this 20th

day of NOVEMBER, 20 17



Notary Public



Index No:

UNITED STATES DISTRICT COURT
EASTERN DISTRICT OF NEW YORK

THE ESTATE OF SHELDON A. SAMUEL, by the Administrator of his Estate,
SHELDON SAMUEL, Jr.

Plaintiff(s),

-against-

NE W YORK CITY POLICE DEPARTMENT -THE CITY OF NEW YORK, P.O.
Jonathan Caldron, P.O. John Does, 1-3, Individually And in their Official Capacities, and
Police Sergeants "Merrick Vance", and Sergeants "John Doe", 1-3, Individually and in
their Official Capacities; and each of the above Joint and severally. The names "JOHN
DOE" being fictitious, as the true names are not Presently known.

Defendant(s).

CORRECTED SUMMONS & VERIFIED COMPLAINT

Pursuant to 22 NYCRR 130-1.1a, the undersigned, an attorney admitted to practice in the
courts of the State of New York, certifies that, upon information and belief, after
reasonable inquiry, the contentions contained in the annexed document(s) are not
frivolous.

By: _____

Law Firm of Ray & Associates

Attorneys for Plaintiff

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